

Getting A Reluctant Lawyer To Move

Five bounded asks, one non-negotiable, the telephone script, and the fallback ladder if he will not act — including the one-page filing you can make yourself to stop the clock.

PREPARED FOR

Mohammed Faraaz Rahman, MD

DATE

30 July 2026

SUBJECT

Douglas W. Drazen, Esq.
Counsel of record, 3:26-cv-00197

COMPANION

08_Emails_Ready_To_Send.md
— contains the email itself

Do not send this document to Mr. Drazen. This is an internal playbook that assesses how to handle him. The email he receives is a separate document, deliberately worded so that nothing in it reads as pressure or criticism. Sending him this would damage a relationship you need. Not legal advice; procedural steps require verification by licensed counsel.

Why The Ask Is Small On Purpose

A reluctant lawyer does not refuse tasks. He refuses **open-ended commitment** — a new case, a new front, years of unbudgeted work on a theory he may not believe in. So do not ask for that, and say so in the first line.

THE FRAME THAT MAKES HIM SAY YES

"None of this asks you to take on the malicious prosecution case. I am retaining separate counsel for that, and I will keep you clear of it."

That sentence does the work of the whole email. It converts a request he wants to decline into five discrete errands, each of which takes him under an hour, and it removes the thing he is actually resisting. **A lawyer who is relieved is a lawyer who acts.** Do not negotiate about whether the malicious prosecution case is a good idea — that conversation gets you nothing and costs you the errands.

1.1 Why each item can only come from him

#	ASK	WHY NOBODY ELSE CAN DO IT
1	Documents 17, 18 and 14 from PACER	He has PACER access as counsel of record. You do not. Document 17 contains the deadline that governs whether the federal complaint can still be amended at all — and nobody has read it. Trivial for him: three clicks.
2	The exact acquittal date	His file has it. Your records conflict between August and September 2025, and every limitation calculation runs from it. Faster than the sealed-record route, though pursue both.
3	A protective summons with notice against the complainant	He is already retained, already knows the facts, and can commence an action in Broome County the same day. Incoming counsel cannot file before being retained, and retention may take longer than the limitation period allows.
4	The release carve-out	Only he can bind himself. He is the person who would sign the release. See Part 2 — this is the one item that is not optional.
5	The amendment decision	He is counsel of record. Only he can amend that complaint. Incoming counsel has no standing in the employment case at all.

ON THE SUBSTITUTION POINT — SAY IT, BECAUSE IT IS THE UNLOCK

Tell him he can be **substituted out immediately after filing.** Substitution of counsel is routine, and a lawyer who understands that filing does not commit him to litigating will file. Without that sentence he hears "sign up for a three-year case." With it, he hears "file a one-page document." **The sentence is in the email for that reason — do not remove it.**

The One Non-Negotiable

A GENERAL RELEASE IN THE UHS CASE COULD DESTROY THE MALICIOUS PROSECUTION CLAIMS

The UHS action is under a **court-ordered mediation referral** (Document 18, entered 10 April 2026). Mediation produces term sheets, and term sheets carry releases. General releases are drafted broadly by default — typically covering "all claims, known and unknown, arising from any matter occurring prior to the date hereof."

If Mr. Drazen signs one, the malicious prosecution and conspiracy claims against the UHS physicians are gone — not weakened, gone — and you would learn about it after the fact. The claims against the complainant and the officers would survive, but Count III, the bridge that ties the prosecution to the retaliation campaign, would not.

This is the single most urgent item in the entire email, ahead of the filing. The filing has a known date. This has no date — it could happen at any mediation session. Get it confirmed in writing, and keep the reply.

2.1 The words to insist on

If he asks what carve-out language he should hold out for, this is the shape of it. Incoming counsel should refine it.

"Notwithstanding any other provision, this release does not extend to, and expressly preserves, any and all claims arising from or relating to the criminal proceeding commenced against Plaintiff in April 2024 in Binghamton City Court, including without limitation claims for malicious prosecution, fabrication of evidence, conspiracy, and defamation, whether against the parties released herein or any other person."

Note the last clause. Without "or any other person," a release running only to the UHS defendants can still be argued to affect joint tortfeasors. Incoming counsel will know the New York rule on this — General Obligations Law § 15-108 — but the drafting instinct is to say it expressly.

The Telephone Call

Send the email first, then call the same day. The email is the record; the call is what makes it move. Keep it under five minutes and do not argue the merits.

Opening — thirty seconds

"Doug, I sent you an email with five items. I want to be clear up front — I'm not asking you to take on the criminal side. I'm getting separate counsel for that. I need five things from you that nobody else can do, and the whole list is about an hour of your time."

The two items to name out loud

"The two that matter most are the release carve-out and the protective filing. The malicious prosecution period expires this month, and if a general release gets signed at mediation the claims against the physicians disappear. I need you to confirm the carve-out in writing, and I need a summons with notice filed against her before the date."

The either/or — this is the close

"If you'd rather not make the filing, that's completely fine — I just need to know today, so I can have someone else do it. Either answer works. I only need it in writing."

Why this closes. It gives him a costless way to say no, which paradoxically makes yes more likely — and a written no is nearly as valuable to you as a yes, because it releases you to act and it is dated. What you cannot survive is silence.

If he pushes back on the merits

"You may well be right, and I'm not asking you to litigate it. I need the clock stopped so somebody else can evaluate it properly. If it's a bad case, new counsel will tell me and I'll drop it — but I can't get that opinion after the deadline."

Do not defend the case. **Concede that he may be right and reframe the ask as preserving the option rather than pursuing the claim.** No lawyer objects to preserving an option, and it is the truthful position — you do not yet know what the transcript says.

Closing

"Last thing — will you release my file to incoming counsel and sign a common-interest agreement with them? I want the two cases coordinated so neither of us trips the other up."

The Fallback Ladder

Work down this list. Do not skip a rung and do not linger on one. The whole ladder must be climbed inside the month.

RUNG	TRIGGER	ACTION
1	Day 0	Send the email. Call the same day. Get the release confirmation in writing.
2	48 hours, no reply	Send the single follow-up in the companion document. Name the limitation date. Ask for a reply <i>even if the answer is no</i> .
3	He declines the filing	Fine — that was one of two acceptable answers. Get it in writing, then tell every firm you have approached that a filing is needed this month and existing counsel will not make it . That converts your matter from an intake enquiry into an emergency, which is the fastest way to get a civil rights firm to move.
4	No firm retained with under 10 days left	Ask the most responsive firm for a limited-scope engagement: the protective filing only . Many firms will take a bounded, few-hours engagement for a flat fee where they would not yet take the whole case. This is a normal request and you should make it explicitly.
5	Under 5 days, nobody engaged	File it yourself. See Part 5. This is not the plan, but it beats losing the claim.

THE THING TO WATCH FOR

A reluctant lawyer's most likely failure mode is not refusal. **It is a warm reply that agrees in principle and then nothing happens.** Treat "I'll look at it" as a non-answer. The only responses that count are the documents in your hand, the written release confirmation, and an index number. Diarise a check at 48 hours and again at 5 days, and escalate on schedule rather than on feeling.

The Last Resort — Filing It Yourself

READ THIS ONLY IF THE LADDER HAS RUN OUT

New York allows an action to be commenced by a **summons with notice** — a short document that does not require a complaint. Filing it commences the action and stops the limitation period; the complaint follows later. **This is the standard device for exactly your situation**, and it is within reach of a self-represented litigant with your experience. Incoming counsel then appears, serves, and amends.

STEP	WHAT IT INVOLVES
Where	Broome County Supreme Court , County Clerk's office. The complainant is a private individual, so no notice of claim and no municipal defendant is involved — which is precisely why this claim is the one that can be filed alone.
What to file	A summons with notice under CPLR 305(b). It must name the parties, state the nature of the action and the relief sought , and state the sum demanded. Filing commences the action under CPLR 304.
Nature and relief	State it simply: <i>"Action to recover damages for malicious prosecution and defamation arising from a false criminal complaint made on or about 22 April 2024, resulting in the plaintiff's prosecution and acquittal."</i> Relief: money damages in an amount to be determined, plus costs.
Cost	An index number must be purchased from the County Clerk. Confirm the current fee; budget a few hundred dollars. A fee waiver is available on a poor-person application if needed.
After filing	Service within 120 days under CPLR 306-b. If the defendant demands a complaint, it must be served within 20 days under CPLR 3012(b) — so retain counsel promptly after filing . Do not file and then go quiet.
What it buys	The limitation period. Nothing else. It is a placeholder, and it is enough.

THE JUDGEMENT CALL, STATED HONESTLY

A self-filed summons with notice is **worse than a properly drafted complaint by good counsel and infinitely better than nothing**. A claim preserved imperfectly can be repaired by a lawyer in a week. A claim lost to the limitation period cannot be repaired by anyone, ever. If you reach rung five, file — and confirm the CPLR requirements with the Clerk's office when you buy the index number, because they will tell you what the form needs to contain.

Preparation and limits. Internal playbook prepared with analytical assistance. Not legal advice and not prepared by a lawyer. The CPLR provisions cited — 304, 305(b), 306-b, 3012(b) — and General Obligations Law § 15-108 should be confirmed with the County Clerk or with counsel before any self-filing. Deadlines depend on the exact acquittal date, which remains unconfirmed as between August and September 2025. Do not transmit this document to Mr. Drazen.